

Court No. - 46

Case :- WRIT - C No. - 15711 of 2020

Petitioner :- Arvind Kumar Jain

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pavan Kumar,Pranjal Mehrotra

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

The present writ petition has been filed with the following relief;

"(A) A writ order or direction in the nature of certiorari quashing the impugned recovery citation dated 28.6.2020 issued by respondent no. 2 against the petitioner for the amount of Rs. 1,41,360/- in respect of electric connection of the petitioner no. DM3B209/082415/771725671072.

(B) A writ order or direction in the nature of mandamus commanding and directing the respondents not to take coercive action against the petitioner in pursuance of the impugned recovery Citation dated 28.6.2020.

(C) Issue any other order or direction as this Hon'ble Court may deem fit and proper under the circumstances of the case.

(D) Award the cost of the writ petition to the petitioners."

The learned counsel for the petitioner submits that the petitioner has preferred a representation in respect of electricity dues to the respondent no. 4 annexed as Annexure-5 to the writ petition on 13.3.2020 but the same has not been considered so far.

Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra is present on behalf of the respondent nos. 2, 4 and 5 submits that the petitioner has an alternative remedy of approaching the Executive Engineer under Clause 6.5 of Electricity Supply Code and in case the petitioner approaches the said respondent within a period of two weeks from today, the said respondent will consider the grievance of the petitioner and pass appropriate order.

Under the facts and circumstances of the case, this writ petition is disposed of with the direction to the respondent no. 4 to consider the grievance of the petitioner in respect of electricity dues and pass appropriate order afresh within four weeks in accordance with law.

In the meantime no coercive steps shall be taken pursuant to the recovery citation dated 28.6.2020.

Order Date :- 7.10.2020

Shahnawaz